

Thus, for both procedural defects and on the merits, the court denies this motion in its entirety.

TARA CRUZ v. CARVANA, LLC et al.
Case No. CU25-05498

GM's Demurrer to Second Amended Complaint

TENTATIVE RULING

The Court, on its own motion, continues the matter to August 14, 2026 at 9:00 a.m. in Department 8. Parties are reminded to check the tentative ruling system the day prior to the hearing.

CROWN ASSET MANAGEMENT v. WADE PRITCHARD
Case No. CU25-06184

Motion to Set Aside and Vacate Default and Default Judgment

TENTATIVE RULING:

Parties to appear. Moving party failed to include notice regarding the court's tentative ruling system as required by Local Rule 3.9 (d).

Defendant WADE PRITCHARD's motion to set aside or vacate the default and default judgment entered May 8, 2026, is GRANTED due to mistake, inadvertence or excusable neglect.

This suit was served on October 28, 2025.

PRITCHARD is reminded that if he is representing himself, he is held to the same standard as an attorney.

Defendant shall file a responsive pleading within 20 calendar days. Should PRITCHARD fail to do so, Plaintiff is directed to perfect a second default. The court will not be setting aside a second default.

DEMETRIO RINCON TORRES et al. v. UOB of VACAVILLE, LLC., et al
Case No. CU25-07125

Motion to Compel Arbitration and Stay or Dismiss Proceedings

TENTATIVE RULING:

Parties to appear.

In its previously posted TR, the court provided:

Plaintiff Rincon-Torres contends that he does not speak, read or write in English. He has signed his written assent to an agreement to arbitrate any claims related to his employment with Defendant UOB of VACAVILLE, LLC. ("UOB"). Plaintiff further contends that at the time of onboarding a representative for UOB spoke with him in Spanish but did not explain each of the terms of the arbitration agreement.

Defendant does not provide a declaration in response from any UOB representative or employee to contradict Plaintiff's allegations. However, Defendant does provide a page from a bold.pro website for Demetrio Rincon Torres from nearby Winters CA which is in English and identifies UOB as a prior employer and sets forth his prior employment qualifications and 9 year employment history as a cook and lead cook in North Dakota and California. This page is submitted via a request for judicial notice. The court takes no position on whether a request for judicial notice is an appropriate method to present a website page and neither party has briefed that legal issue.

As it does in all proposed complex cases, the court initially stayed discovery pending further case management orders. The court finds it is necessary that this stay be lifted for the limited purpose of allowing both parties to engage in discovery on the limited issue as to Plaintiff's ability to understand English, his ability to read and write in English, his exercise of English in the workplace, the scope of the communications and interpretation between Plaintiff and a UOB representative at the time of onboarding, and Plaintiff's involvement in the creation of the bold.pro website page. This limited discovery does not constitute a waiver of the right to compel arbitration. (See e.g. *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 412-413; *Bouton v. USAA Casualty Ins. Co.* (2008) 167 Cal.App.4th 412, 427; *Aronow v. Superior Court* (2022) 76 Cal.App.5th 865, 884; *Brown v. Wells Fargo Bank, NA* (2008) 168 Cal.App.4th 938, 951.)

The court retains the discretion to set a further evidentiary hearing, but prefers the matter to be decided on the pleadings and declarations.

The hearing is continued to **Thursday, July 30, 2026, at 8:30** to permit the parties the opportunity to engage in this limited and expedited discovery. Moving party may file and serve a supplemental pleading not to exceed 10 pages (inclusive of any attachments or declarations) on or before July 2, 2026. Responding party may file and serve a supplemental pleading not to exceed 10 pages (inclusive of any attachments or declarations) on or before July 17, 2026. Moving party may file and serve a reply not to exceed 5 pages (inclusive of any attachments or declarations) no later than July 21. Parties are reminded to consult the court's tentative ruling system on July 29, 2026, after 2:00 and to request oral argument and notify opposing counsel of the request by 4:00 p.m.

Subsequently, Defendant filed a motion to compel the further deposition of plaintiff alleging that plaintiff's counsel prevented defense counsel from inquiring as to Defendant's English language education, where he was born and how long he has been in the United States, his use of English in daily life, his use of English with third parties and other facts relevant to his ability to understand English. While a transcript from the deposition was requested by the court to verify the information, the described questions follow the court's directions and are consistent with the discovery the court authorized.

At the case management conference on July 30, 2026, the court exercised its discretion to conduct an evidentiary hearing on the limited issue of Plaintiff's ability to understand English, finding that the discovery conflict on this limited issue created unnecessary work and expense for the parties when the court as fact-finder could make the determination. The matter is set for a 1 hour evidentiary hearing.

The court additionally confirmed the hearing on the motion to compel arbitration to take place on August 6, 2026 at 9:00.

ADRIANNA PRICE-HICKS v. SOLANO COUNTY ET AL.
Case No. CU26-04956

Petition to Approve Minor's Compromise (Solano County)

TENTATIVE RULING:

This matter is continued on the court's own motion to permit Plaintiff to supplement the petition. Hearing is **continued to October 7, 2026, at 9:00 a.m.**

No treatment medical records are attached to the petition. See 10.b. A billing summary from Medi-Cal reflects 3 treatment contacts by Northbay Healthcare on 2/20/24 for the initial encounter and 2/26/24 for an additional encounter. Inexplicably a third entry described as an initial encounter is dated 6/5/24. The petition alleges treatment is not complete and the minor suffers from PTSD and anxiety but she does not appear to be seeking or receiving treatment for emotional distress?

It also seems that Solano County (including the Solano Sheriff's Department) is the only resolving defendant but that the California Highway Patrol is also named and has not been dismissed. Please explain. Is a motion for good faith settlement necessary? If CHP is dismissed, the court will understand a motion for good faith settlement is not required.

A supplemental pleading shall be filed no later than September 24, 2026. Please review the tentative hearing system on October 6, 2026.

Deon Issac, J.A., T.A. and N.C. et al. v. Northbay Healthcare Corporation
Case No. FCS059353

Plaintiff's Motion for Final Approval of Class Action Settlement